



General Assembly

February Session, 2026

Raised Bill No. 5267

LCO No. 1696



Referred to Committee on JUDICIARY

Introduced by:
(JUD)

***AN ACT CONCERNING ELIGIBILITY FOR INCAPACITY BENEFITS
UNDER THE WORKERS' COMPENSATION ACT.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 31-307 of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) If any injury for which compensation is provided under the
4 provisions of this chapter results in total incapacity to work, the injured
5 employee shall be paid a weekly compensation equal to seventy-five per
6 cent of the injured employee's average weekly earnings as of the date of
7 the injury, calculated pursuant to section 31-310, after such earnings
8 have been reduced by any deduction for federal or state taxes, or both,
9 and for the federal Insurance Contributions Act made from such
10 employee's total wages received during the period of calculation of the
11 employee's average weekly wage pursuant to section 31-310; but the
12 compensation shall not be more than the maximum weekly benefit rate
13 set forth in section 31-309 for the year in which the injury occurred. No
14 employee entitled to compensation under this section shall receive less
15 than twenty per cent of the maximum weekly compensation rate, as

16 provided in section 31-309, provided the minimum payment shall not
17 exceed seventy-five per cent of the employee's average weekly wage, as
18 determined under section 31-310, and the compensation shall not
19 continue longer than the period of total incapacity. Notwithstanding the
20 provisions of this chapter, any employee who has elected to retire from
21 the workforce and whose incapacity occurs after such retirement shall
22 not be eligible to receive compensation under this section.

23 (b) Notwithstanding the provisions of subsection (a) of this section,
24 any employee who suffers any injury or illness caused by the employer's
25 violation of any health or safety regulation adopted pursuant to chapter
26 571 or adopted by the federal Occupational Safety and Health
27 Administration and listed in 29 CFR, Chapter XVII, after the violation
28 has been cited in accordance with the provisions of section 31-375 or the
29 provisions of the Occupational Safety and Health Act of 1970, 84 Stat.
30 1601 (1970), 29 USC 658 and not abated within the time fixed by the
31 citation, provided the citation has not been set aside by appeal to the
32 appropriate agency or court having jurisdiction, shall receive a weekly
33 compensation equal to one hundred per cent of the employee's average
34 weekly earnings at the time of the injury or illness.

35 (c) The following injuries of any person shall be considered as causing
36 total incapacity and compensation shall be paid accordingly: (1) Total
37 and permanent loss of sight of both eyes, or the reduction to one-tenth
38 or less of normal vision; (2) the loss of both feet at or above the ankle; (3)
39 the loss of both hands at or above the wrist; (4) the loss of one foot at or
40 above the ankle and one hand at or above the wrist; (5) any injury
41 resulting in permanent and complete paralysis of the legs or arms or of
42 one leg and one arm; (6) any injury resulting in incurable imbecility or
43 mental illness.

44 (d) An employee who has suffered the loss or loss of the use of one of
45 the members of the body, or part of one of the members of the body, or
46 the reduction of vision in one eye to one-tenth or less of normal vision,
47 shall not receive compensation for the later injury in excess of the

48 compensation allowed for the injury when considered by itself and not
49 in conjunction with the previous incapacity except as provided in this
50 chapter.

This act shall take effect as follows and shall amend the following sections:		
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Section 1	<i>October 1, 2026</i>	31-307
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Statement of Purpose:

To preclude an employee from seeking incapacity benefits when the employee elects to retire from the workforce and experiences the incapacity after such retirement.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]